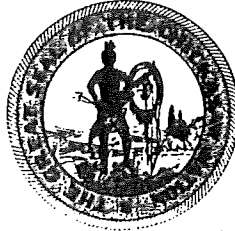


11th Legislature



Bill No. 11-014

**PASSED
VETOED**

8-25-94
Bja

To Establish Fiscal Policy for the Chickasaw Nation departments and businesses, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

Introduced by the Honorable Robert Stephens, Chairman of the Finance and Fiscal Oversight Committee of the Chickasaw Nation Tribal Legislature and the Honorable Mooniene Ogee, Frank Johnson, Rena Duncan, Tim Colbert and Jack Wells, Members.

A BILL

BE IT ENACTED by the Tribal Legislature of the Chickasaw Nation, assembled, hereby adopts the following provisions:

SECTION 1. TITLE

This law shall be known as "The Chickasaw Nation Fiscal Policy Act of 1994".

SECTION 2. AUTHORITY

All departments and businesses of the Chickasaw Nation shall comply with the provisions of this Act. This Act is in addition to existing laws and shall supersede such laws in conflict herewith.

SECTION 3. REVENUES, ACCOUNTING FOR

All monies, revenues, credits, receipts, and evidences of debits coming into or granted in the name of the Chickasaw Nation shall be deemed funds or records of indebtedness of the Chickasaw Nation and shall be turned over to the Comptroller of the Chickasaw Nation who shall, in return for same, issue appropriate receipts and maintain proper accounting of such funds or records of indebtedness.

SECTION 4. COMPTROLLER DUTIES, ADDITIONAL

In addition to the duties of the Comptroller as outlined in the Comptroller Act of 1994, the Comptroller shall provide to the Tribal Legislature, a report of all funds and records of indebtedness which show the specific department or business to which said funds or record of indebtedness has been allocated or assigned.

THIS LEGISLATION, AS CONSTITUTIONALLY APPROVED, SHALL NOW BE STYLED AS TRIBAL LAW 11-012

SECTION 5. CONTRACTS, PERSONAL SERVICE

(1) Personal service contracts shall be defined as payments to persons who are hired for specific purposes but receive such payments at a specified amount as compensation for their services, but who are not considered employees of the Chickasaw Nation, and must bear the cost of the product of their endeavors out of the payments of such contracts. Such personal service contracts may be for an indefinite period of time and may include expense or other reimbursements.

(2) Personal service contracts shall have the prior approval of the Tribal Legislature. Such contracts shall be proposed contracts and shall include in detail, the purpose of the contract, the fund under which the contract is to be paid, the length of the contract, the amount of compensation or salary and benefits to be paid under the contract, and the name and qualifications of the person to be hired under a personal service contract.

(3) A personal service contract not approved by the Tribal Legislature of the Chickasaw Nation shall not be paid out of any direct or indirect funds, grants, or other revenues of the Chickasaw Nation.

SECTION 6. VESTED INTERESTED PROHIBITED

No employee, elected or appointed person of the Chickasaw Nation shall have a vested business interest in any businesses or venture doing business with the Chickasaw Nation government or its Tribal businesses. This provision shall not apply to the conduct of the official government business of the Legislative, Executive and Judicial Departments of the Chickasaw Nation.

SECTION 7. NEW POSITIONS

(1) The Governor of the Chickasaw Nation and the Executive Department shall provide the Chickasaw Tribal Legislature the name and purpose of any new position, and the title and salary range of any new position being proposed for hire. The Chickasaw Tribal Legislature, in addition to current and exercised authority under Section 11, Article VII and Amendment IV of the Constitution of the Chickasaw Nation, shall set the salary for any new position proposed by the Governor of the Chickasaw Nation, the Executive Department, the Legislative Department or the Judicial Department, prior to the hiring for the position.

(2) Confirmation of appointees and hirings of the Governor or Executive Department which will require compensation or payments to such appointees and hirings, shall be made by the Chickasaw Tribal Legislature in that such appointees and hirings are informed of, understand and accept the compensation or payments that were established in relation to part (1) of SECTION 7, of this Act.

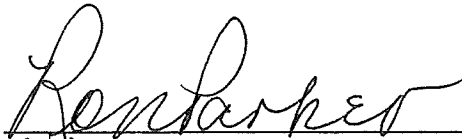
Bill No. 11-014 - Chickasaw Nation Fiscal Policy Act of 1994
Page 3 of 3

(3) The Executive Department and the Judicial Department of the Chickasaw Nation may not include language in any official document that is to be considered for approval of the Chickasaw Tribal Legislature that waives or attempts to circumvent this Act or its intent of the Legislature to exercise its authority under SECTION 11, Article VII and Amendment IV of the Constitution of the Chickasaw Nation.

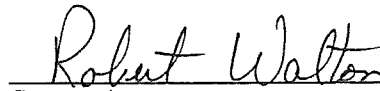
SECTION 8. EFFECTIVE DATE

This Act shall become effective on the date that it is duly adopted as law in accordance with the provisions of the Constitution and laws of the Chickasaw Nation.

Executed in regular session of the Chickasaw Tribal Legislature meeting at Ada, Oklahoma, on August 19, 1994, by a vote of 11 ayes, 2 nays, and 0 Abstentions.



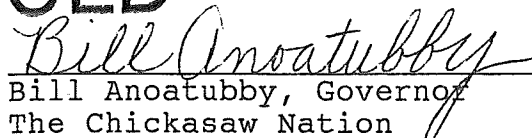
Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

VETOED

Concur:



Bill Anoatubby, Governor
The Chickasaw Nation

Date: AUG 25 1994